Personal/Business Loan

LOAN AGREEMENT

This **LOAN AGREEMENT** (Agreement) contains the terms and conditions of availing the loan by the Borrower (hereinafter defined). By accepting the Agreement, the Borrower(s) agrees to the terms and conditions of this Agreement on the [date and place of acceptance is mentioned in the Loan Summary Schedule (**LSS**) cum Most Important Terms & Conditions (**MITC**) and Key Fact Statement (**KFS**) specified below or attached/annexed hereto.

By and Between

The Borrower(s), details whereof is/are more particularly described in the LSS specified below and, wherever the context so requires, includes a Co-Borrower(s) named therein and hereinafter collectively (if there is more than one Borrower referred to as the **Borrower(s))** of the **ONE PART,**

AND

SMFG India Credit Co. Ltd., a company registered under the Companies Act, 1956 having its registered office at Commerzone IT Park, Tower B, 1st Floor, No. 111, Mount Poonamallee Road, Porur, Chennai-600116, Tamil Nadu, and inter alia a Branch Office at the address stated in the LSS appended hereto (and hereinafter referred to as **SMFG India Credit** which expression, unless repugnant to the context, shall be deemed to include its successors and assigns) of the **OTHER PART**.

WHEREAS the Borrower(s) have agreed to this Agreement by affixing his/her/its physical signature or by way of electronic acceptance, the same are construed as express consent under the existing laws of India. The Borrower(s) has requested SMFG India Credit for availing a loan for profession/personal /business requirements and upon the request of the Borrower(s). SMFG India Credit has agreed to grant the Loan (as defined hereinafter) upon the Borrower(s) accepting the terms and conditions hereinafter appearing. k

AND WHEREAS THE BORROWER BY CONSENTING TO THIS AGREEMENT ACCEPTS THE TERMS AND CONDITIONS INCLUDING THE MITC AS SET OUT HEREINAFTER:-

All captalized terms mentioned in this Agreement shall have the meaning as specified in the GTC mentioned below

1.1 Subject to the terms and conditions contained in the General Terms and Conditions applicable to the Borrower(s) for availing Personal/Business loan registered with the Sub-Registrar's office Chennai, Tamilnadu, a copy of which is available on SMFG India Credit website (https://assets.smfgindiacredit.com/sites/default/files/Personal-Business-Loan-with-LPC.pdf) (hereinafter referred to as "GTC" which term shall include amendments to the same and any additional terms mentioned by SMFG India Credit from time to time) and the sanction letter accepted by the Borrower, the Borrower(s) herein agrees to borrow from SMFG India Credit and SMFG India Credit agrees to lend to the Borrower(s) the sum specified in the KFS (which sum is hereinafter referred to as the "Loan") hereto. The most important terms applicable for the Loan are mentioned in the LSS. All other terms of the Loan sanctioned will subject to the terms mentioned in the GTC. The specific and most important terms applicable to the Loan is mentioned in the LSS and KFS.

1.2 The Borrower(s) certifies that the information and documents provided to SMFG India Credit for availing the Loan are true & accurate and no material information has been withheld /suppressed. The Borrower(s) hereby authorize and give consent toSMFG India Credit to disclose without notice to them, information furnished by them or related documents executed or to be executed in relation to the facilities availed from SMFG India Credit, to SMFG India Credit's other branches, subsidiaries, affiliates, Credit Bureaus, Ratingagencies, Service Providers, Banks/Financial Institutions, Government/Regulatory authorities or third parties for KYC information verification, credit risk analysis, or for other related purposes that SMFG India Credit may deem fit.

1.3 The Borrower understands and acknowledge that subject to their consent, SMFG India Credit may fetch its data like banking details, capital market, GSTN etc as the case may be from the participants in the account aggregators("AA") ecosystem. The AAs is a RBI regulated entity that helps secure access and share authorised data between regulated financial institution. The Borrowers understands that he/she would receive an sms message from our partner AA alongwith the link requesting consent to share such data with SMFG India Credit. Consent once received shall be valid throughout the tenure of the loan and SMFG India Credit shall be entitled to fetch such data on a periodic basis through AA for the purpose of periodic review and monitoring of loan account(s).

1.4 The Borrower(s) further agrees that this Loan transaction shall be governed by the GTC as specified above. The Borrower(s) confirm having received a copy of the GTC which is hosted on the website of SMFG India Credit. The Borrower(s) further confirm that he/she/they have read and understood the terms and conditions mentioned in the GTC applicable to this loan and accept the terms and conditions unconditionally and agree that these terms and conditions may be changed by SMFG India Credit at any time and accordingly he/she/they will be bound by the amended terms and conditions.

1.5 The Borrower(s) also note and acknowledge that SMFG India Credit is obliged to give prospective effect to any revision of interest rates or other charges, whether upwards or downwards, on all existing advances/financial assistances having regard to the RBI guidelines/directives, applicable regulations, conditions in the money market, cost of fund and availability of loanable funds at the relevant time.

1.6 On the happening of any of the Events of Default, SMFG India Credit shall have the right, but not the obligation to recall the entire Loan and demand payments outstanding on the date of such demand made in respect of the Loan together with further interest from the date of the Event of Default till the date of payment in full or realization of the total amounts due and payable and upon the Borrower failing to make the said Payment within 7 (seven) Business Days from the date of such demand, the SMFG India Credit may, at its sole discretion by a notice in writing to the Borrower(s) and without prejudice to the rights and remedies available to SMFG India Credit under the Loan Terms or any other Loan Document and SMFG India Credit shall have, inter alia, the following rights (notwithstanding anything to the contrary in the Loan Terms and/or the other Loan documents and irrespective of whether the entire Loan or Borrower(s)' Dues has/ have been recalled) without any further notice or other legal formalities of any kind namely:

i. in the event the Loan is being disbursed by SMFG India Credit in various disbursements, suspend further drawings of the outstanding commitment of SMFG India Credit; ii. SMFG India Credit shall be entitled to exercise any right, power or remedy permitted to it by law, including by suit, in equity, or by action at law, or both, or otherwise, whether for specific performance of any covenant, condition or term contained in these General Terms and Conditions or for an injunction against a violation of any of the terms and conditions of these General Terms and Conditions. The rights and remedies provided to SMFG India Credit in these General Terms and Conditions are cumulative and not exclusive of any rights or remedies provided by law.

1.7 The Borrower(s) confirms that::

a. The interest rate would be computed on daily balance basis and charged on monthly rests at the rate as set out in the KFS; b. Processing fees will be non-refundable c. Tax on services as may be applicable will be charged in connection with the Loan; c. SMFG India Credit shall not be liable for any loss of documents /photographs or delay in processing of Loan request due to pendency of documents/information required from Borrower, nor will it return any documents/photographs, under any circumstances, once submitted to SMFG India Credit. Equated Monthly Installment (EMI) will be due on the days and periods as mentioned in LSS/KFS; d. Loan prepayment charges shall be applicable as mentioned in KFS herein below; e. Other charges or fees applicable for the Loan mentioned in the KFS are acceptable to the Borrower(s). The Borrower(s) confirm that GST registration information and registration number provided is true and correct. The Borrower(s) further understands that if his/her/their GST registration number is not provided or is incorrect, then GST Authority may not grant him/her/them GST Input Credit for GSTon charges.

d. SMFG India Credit shall be entitled to levy and collect dishonour charges in case of dishonour of cheque/ECS/NACH presentation as per SMFG India Credit's internal policies from time to time. The Cheque/ECS/NACH dishonour charges as referred to herein are not compensatory and/or to be construed as any form of consideration towards the act of dishonour and in no ways should the same be construed as fees recovered under this facility. It is abundantly clarified that SMFG India Credit does not tolerate dishonour of instruments and/or deposit of an invalid, fake or unworthy instrument issued towards meeting payment obligations under this facility and any charges collected thereof are not intended to compound such acts of dishonour. Notwithstanding any charges collected hereof SMFG India Credit reserves its right to invoke appropriate civil and criminal laws.

1.8 **Service Providers**

It is agreed by the Borrower(s), that without prejudice to any rights of SMFG India Credit, all acts/steps as are necessary for SMFG India Credit to take in order to monitor the Loan and its utilisation and/or the obligations of the Borrower(s), and/or the Borrower's compliance with the terms hereof, and/or to recover amounts due to SMFG India Credit or any part or portion thereof, shall and/or may be carried out by and/or through such other person (including a company or body corporate) as may from time to time be appointed by SMFG India Credit in respect thereof and that SMFG India Credit will at all times be entitled to share with any such other person that may thus be appointed by SMFG India Credit, all documents statements of accounts and other information of whatsoever nature pertaining to the Borrower and/or the Loan. Further, the Borrower(s) expressly recognises and accepts that SMFG India Credit shall, without prejudice to its rights to perform such activities either itself or through its officers or servants, be absolutely entitled and have full power and authority to appoint one or more third parties/recovery agent(s) of SMFG India Credit's choice and to transfer or delegate to such third parties/recovery agent(s) the right and authority to collect on behalf of SMFG India Credit all unpaid amounts and to perform and execute all acts, deeds, matters and things connected therewith or incidental thereto including attending the office or residence of the Borrower(s), receiving the amounts due, and generally performing all lawful acts as the third party may consider appropriate for such purposes.

1.9 **Customer Grievance Redressal Mechanism** (i) Below is SMFG India Credit's customer grievance redressal mechanism, which is also available on SMFG India Credit's website on https://www.smfgindiacredit.com/policies/grievance-redressal-mechanism-vernacular.aspx and on the notice board of SMFG India Credit branches: The grievance redressal process for SMFG India Credit consist of a 3 level grievance redressal mechanism to ensure complaints are treated in an efficient, transparent and fair manner, where the Borrower(s) is not satisfied with the services provided by SMFG India Credit.

Level 1: Borrower(s) can submit their complaint at any of the following customer touch-points: (a) Mobile App - SMFG India Credit m-Connect, available on both Android & IOS; (b) Customer Portal on www.smfgindiacredit.com; (c) Email at namaste@smfgindia.com; (d) Call SMFG India Credit Customer Toll-free Helpline: 1800 103 6001 (Timings: 9 a.m. to 7 p.m. - Monday to Saturday excluding public holidays & fourth Saturday of the month); (e) Visit SMFG India Credit branch (Branch timings: 9:30 a.m. to 6:30 p.m. on Monday to Saturday, excluding public holidays and first Saturday of the month;); or (f) Write on address: "SMFG India Credit Co. Ltd., Ground Floor, Embassy 247, Gandhi Nagar, LBS Marg, Vikhroli West, Mumbai-400083".

Level 2: If there is a delay in the resolution of the complaint or Borrower is not satisfied with the resolution provided to it, Borrower may write to Customer Complaint Redressal Cell (CCRC) at Email ID - CCRC@smfgindia.com, or on Address – "Customer Complaint Redressal Cell, SMFG India Credit Co. Ltd., Ground Floor, Embassy 247, Gandhi Nagar, LBS Marg, Vikhroli West, Mumbai400083". Borrower(s) will receive an acknowledgment/interim response within 7 business days from the receipt of the complaint.

Level 3: If the Borrower is dissatisfied with the resolution provided by CCRC, Borrower may write to Grievance Redressal Officer (GRO) at Email ID - GRO@smfgindia.com, or on Address – "Grievance Redressal Officer, SMFG India Credit Co. Ltd., Ground Floor, Embassy 247, Gandhi Nagar, LBS Marg, Vikhroli West, Mumbai-400083" or call on Tel. No. - 022-69581104. Borrower(s) will receive an acknowledgment/interim response within 2 business days from the receipt of the complaint.

In case the Borrower(s) is dissatisfied with the resolution provided by GRO, the Borrower(s) may write to Principal Nodal Officer at Email ID - PNO@smfgindia.com, or on Address – "Principal Nodal Officer, SMFG India Credit Co. Ltd., Ground Floor, Embassy 247, Gandhi Nagar, LBS Marg, Vikhroli West, Mumbai-400083" or call on Tel. No. - 022-69581104. Borrower(s) will receive an acknowledgment/interim response within 2 business days from the receipt of the complaint.

(ii) In case the Borrower(s) is dissatisfied with the response received or where no response is received within 30 days, the Borrower(s) may approach the RBI Ombudsman by lodging its complaints in Online Complaint Management System at https://cms.rbi.org.in OR in write on address "Centralized Receipt & Processing Centre (CRPC), Reserve Bank of India, 4th Floor, Sector 17, Chandigarh - 160017" by post, OR Call CRPC Toll-free Helpline 14448 to know how to file a complaint and to get the status of a filed complaint. Alternately, Borrower may appeal to the Officer-in-charge, Department of Supervision, Reserve Bank of India, Fort Glacis, No.16, Rajaji Salai, Chennai 600001. Tel.: 044-2536 1631.

(iii) The Borrower understands that SMFG India Credit shall be entitled to modify the customer grievance redressal mechanism under sub-clause (i) above, in its sole discretion, by communicating the Borrower through such means as may be determined by SMFG India Credit including but not limited SMS, Email, or publishing on its official website.

1.10 Notwithstanding anything contained in GTC, the Interest on the Loan shall begin to accrue from the date of disbursement / date of NEFT or RTGS/ date of handover of Loan cheque to the Borrower (irrespective of the time taken for realization of the cheque by the Borrower(s) or its bank).

1.11 The Borrower(s) hereby agrees that SMFG India Credit, it officers, employees and agents or external auditors appointed by SMFG India Credit shall have a right to inspect/audit Borrower's financial statements/accounts/books/ records, assets and properties and Borrower(s) hereby undertake to fully cooperate with and provide all information, documents or records to SMFG India Credit or such external auditors for the purpose of completion of the audit/inspection.

1.12 The Borrower(s) agree that the credit facilities shall be used specifically for the purpose mentioned in the sanction letter issued by SMFG India Credit and the same have not been diverted/siphoned off. In this context the Borrower(s) agree to provide the necessary end-use certificates, further documents and proof as requested by SMFG India Credit from time to time so as to enable SMFG India Credit to independently confirm the end use. Further, the Borrower(s) hereby agrees and consents that SMFG India Credit shall have a right to procure certifications from Borrowers' auditors regarding diversion/siphoning of funds by the

Borrower by awarding a separate mandate to Borrower's auditors for the said purpose and the Borrower hereby undertake to fully cooperate with SMFG India Credit including providing necessary instructions to its auditors to provide such certifications as may be required by SMFG India Credit.The Borrower(s) further agree that SMFG India Credit shall have the right but not an obligation to engage a third-party auditor/professional to obtain a certification as to whether the Borrowers have engaged in diversion or siphoning of funds sanctioned by SMFG India Credit and to rely on the certificates issued by such auditor/professional. Where SMFG India Credit reasonable determines that the Borrower(s) have provided incorrect certifications/declarations or have misrepresented the facts or have diverted/siphoned off the funds, SMFG India Credit shall, without prejudice to any remedy available under law or contract, be entitled to initiate appropriate proceedings, civil and/or criminal, against the Borrower(s).

1.13 The Borrower(s) hereby understand and explicitly agree that under no circumstances shall SMFG India Credit renew/ enhance/ provide fresh facility(ies) or restructure existing facility(ies) provided to the Borrower(s), so long as the Borrower's name and/or promoter and/ or the director(s) and/or the person in charge and responsible for the management of the affairs of the Borrower entity remains in the list of wilful defaulters.

1.14 The Borrower(s) agree that the interest/fee/charges or terms and conditions of Loan may be amended/changed/modified/replaced/revised by SMFG India Credit at any time, by giving a reasonable prior notice to the Borrower(s) by such means as SMFG India Credit may consider appropriate, including but not limited to by way of SMS, e-mail and/or letter sent on The Borrower(s) mobile no., email id or address, respectively, as available in SMFG India Credit's records and the Borrower(s) will be bound by such amended terms and conditions.

1.15 To the extent permissible under applicable laws & regulations, the Borrower(s) hereby acknowledge, agree and consent that SMFG India Credit shall be entitled to, without any reference, intimation or notice to the Borrower, participate in any default risk guarantee backed scheme with any third party in respect to
Borrower's loan account in such manner and on such terms as SMFG India Credit may deem fit.

IN WITNESS WHEREOF, THE B O R R O W E R HERETO HAVE SIGNED OR ACCEPTED THROUGH ELECTRNIC MODE THIS AGREEMENT IN ACCEPTANCE OF ALL

TERMS AND CONDITIONS STATED ABOVE AND THE SCHEDULE HERETO ON THE DAY, MONTH AND YEAR MENTIONED IN THE SCHEDULE.

Name of the Borrower: _____ _____
Name of Authorised Signatory (for Proprietorship, Partnership & Companies) (Signature)

Name of the Co-Borrower: _____ _____
Name of Authorised Signatory (for Proprietorship, Partnership & Companies) (Signature)

For SMFG India Credit Co. Ltd.
Name of the Authorised Signatory _____ _____
(Signature)

LOAN SUMMARY SCHEDULE(LSS) / MITC (Most Important terms and conditions)

Please read carefully before confirming
ACKNOWLEDGEMENTFORM

I/We refer to Application Reference No _____. I/We have been provided the following information and agree with the same and have accordingly filled up the aforesaid Agreement:

Name of the Borrower	:															
Name of the Co-Borrower																
GST No.(if applicable)	:															
Loan Amount	:	INR_____ (In words: _____Only)														
Loan Tenure (in Months)	:	____ months, unless a Payment Holiday facility is granted in which case the term shall be automatically extended by proportionate number of additional months in accordance with the number of Payment Holidays granted and/or otherwise at the sole discretion of SMFG India Credit														
No. of advance EMI	:							**Total Fee**				INR				
Third Party Product(s) (including Insurance) inclusive of taxes	:	**Premium / Amount In INR**	**Life Insurance**		**General Insurance**		**Other TPP**		**Sum of all TPP – Total (Amount to be deducted from Loan amount**							
			ICICI Prudential	**HDFC Life**	**ICICI Lombard**	**TATA_ AIG**	**Doc Online**	**MB vHealth (IHO)**								
		Applicant														
		Co-applicant														
		Total TPP Amount														
Exact date of repayment of each Month**																
First Installment Date	:				**Last Installment Date*** **											
Break up between Principal and Interest (Interest is accumulated on your loan account from the day of disbursement, hence values mentioned in the corresponding table are indicative, repayment schedule with actual values will be shared subsequent to disbursement)		**Principal**	**INR**		Examples of SMA/NPA classification dates			As mentioned in below in this Agreement								
		Total interest Recoverable	**INR**													
Place of arbitration and jurisdiction	:	Chennai														

Additional Terms and conditions	:	The Borrower(s) shall pay to the Lender interest on the principal amount of the Facility outstanding from time to time and other amounts due under or in respect of the Agreement at the applicable Interest Rate (as reset from time to time) from the date of each disbursement. Pre Installment Interest, will be computed from date of disbursement to the due date of the next month as mentioned in the MITC. It will fall due on the due date falling on the next month, however, will be charged separately on the due date of the subsequent month following the next month along-with First EMI (For the purpose of illustration the loan is disbursed on 15th of October, and the due date is 4th of every month and the First installment date is 4th December. Pre-installment interest in this case would be computed from 15th October till 3rd of November and will fall due on 4th November. However, the Pre EMI will be collected on 4th of December, along with the first EMI.) Following terms and conditions shall be applicable in addition to the terms mentioned in the General Terms and Conditions applicable to the borrower(s) for availing Personal/Business loan registered with the relevant Sub-Registrars office situated in the state of Tamilnadu, a copy of which is available on SMFG India Credit website (https://smfgindiacredit.com/policies.aspx) (Hereinafter referred to as GTC) Additional Terms shall prevail in case of inconsistency with the terms mentioned in the GTC.

Example for SMA and NPA in accordance with RBI

Method of calculation of Special Mention Account (SMA) and Non-Performing Asset (NPA) account, in case of default by any customer, shall be as follows:

Few important definitions and concepts:

SMFG India Credit shall classify any account as SMA or NPA after running day-end process.

Day-end process: At the end of every calendar day, SMFG India Credit shall run a process to determine whether an account will be treated as overdue or not. In case of NACH/ e-NACH mandates/ standing instructions, if by the time the day-end process is run, the dues from the customer are not received into the designated bank account of SMFG India Credit, the amount would be considered as not received and therefore will be treated as overdue. In case of collection by cash, the date of issuance of money receipt by SMFG India Credit shall be treated as the date when the amount has been duly received by SMFG India Credit. In case of collection by cheques, the value date shall be considered as the date when the amount has been received by SMFG India Credit, unless the cheque is subsequently returned as dishonoured by SMFG India Credit's bank(s), in which case the instalment/ EMI amount shall be considered as overdue at the end of day on the value date, i.e. the due date of such payment.

Special Mention Account (SMA): RBI guidelines require a lender like SMFG India Credit to immediately recognize incipient stress in borrower account by classifying them as SMA. RBI prescribes three levels for SMA recognition, viz., SMA-0, SMA-1 and SMA-2. For definition of SMA and grading mechanism, you may want to refer RBI circular no.
DBR.No.BP.BC.45/21.04.048/2018-19 dated June 7, 2019 on 'Prudential Framework for Resolution of Stressed Assets'.

Illustration:

In case the due date for an account is 4th calendar day of every month (say, 4th July 2021). The SMA and NPA classification in such cases shall be as follows:

- If the EMI/ entire dues of a particular account are not received into the bank account of SMFG India Credit before the day-end process is run on the 4th calendar day, i.e. the due date, the account shall be treated as overdue after day-end process. Accordingly, this account shall be classified as SMA-0.
- If this account remains continuously overdue even after the completion of day-end process on 30th day from the initial due date, after its classification as SMA0, the account shall be classified as SMA-1, immediately after running of day-end process, if the full dues are not received before day-end process is run on the 30th day.
- If the account continues to remain overdue for 60 days, it shall be classified as SMA-2 upon running day-end process on the 60th day from the initial due date.
- If the account remains continuously overdue for 90 days, it shall get classified as NPA upon running day-end process on the 90th day from the initial due date.
- Once an account is classified as NPA, it may be upgraded as 'standard' only after the entire arrears/ overdue of interest and principal are paid fully.

The above illustration has been further explained in the table below:

Day-end process on	DPD	Scenario	Classification
04.07.2021	1	If full dues are not received before the day-end process	SMA 0
03.08.2021	31	If full dues are not received before the day-end process	SMA 1
02.09.2021	61	If full dues are not received before the day-end process	SMA 2
02.10.2021	91	If full dues are not received before the day-end process	NPA

KEY FACTS STATEMENT (KFS)

This Key Facts Statement forms an integral part of Loan Agreement executed between the Borrower(s) and SMFG India Credit Co. Ltd.

Interest Rate and Fees/Charges

Loan App Ref No: _____ KFS Date :

Type of Loan : Personal Loan / Business Loan

Lead ID : _____

Borrower Name : _____

Co-Borrower Name : _____ Loan term in months :

Sanctioned Loan amount (in Rupees) : ₹

Disbursal schedule (i) Disbursement in stages or 100% upfront. (ii) If it is stage wise, mention the clause of loan agreement having relevant details	100% upfront

Instalment details

Type of instalments		Number of EPIs /EMIs	EPI / EMIs.(₹)	Commencement date of Repayment
Monthly			₹	
Interest rate (%) Per annum			Interest rate (%) Type	Fixed

Additional Information in case of Floating rate of interest

Reference Benchmark		Benchmark rate (%) (B)	Spread (%) (S)		Final rate (%) R = (B) + (S)		Reset periodicity2 (Months)		Impact of change in the reference benchmark (for 25 bps change in 'R'	
							B	S	EPI (₹)	No of EPI
NA	NA	NA	NA	NA	NA	NA	NA	NA	NA	NA

Fee/ Charges

Fees and Charges Details	Payable to the SMFG India Credit		Payable to a Third Party through SMFG India Credit	
	One-Time / Recurring	Amount (in ₹) or Percentage (%) as applicable	One-Time / Recurring	Amount (in ₹) or Percentage (%) as applicable
Processing fees	One-Time	₹		₹
Insurance charges	One-Time	₹ NA	One-Time	₹
Stamp Fee	One-Time	₹ 400		₹
Valuation fees	NA	₹NA		₹
Wellness/ Preventive Health Care Membership Fee (Other TPP)	NA	NA	One-Time	₹

Annual Percentage Rate (APR) (%) Per-Annum :	
Details of Contingent Charges # (in ₹ or % as applicable) **(#charges contingent upon occurrence or non-occurrence of specified event)**	
Penal charges, if any, in case of delayed payment (Late Payment Charges)	**2% per month (24% per annum) on overdue amount calculated on day to day basis payable from the relevant due date till date of actual payment**
Other penal charges, if any	
Foreclosure/Prepayment Charges Note: a) No foreclosure charges/ pre-payment penalties will be applicable on any floating rate term loan sanctioned for purposes other than business to individual borrowers, with or without co-obligant(s).No foreclosure charges will be applicable on Microfinance Loans) b) No foreclosure charges will be applicable on Microfinance Loans)	(a) No part prepayment of the Loan shall be allowed. (b) In case of prepayment of entire Loan with interest amounts outstanding following will be the prepayment charges: • upto 17 EMI(s) fully paid: 7% of the Principal Loan amount outstanding on the date of prepayment; plus goods and services tax. • 18 to 23 EMI(s) fully paid 5% of the Principal Loan amount outstanding on the date of prepayment; plus goods and services tax. • 24 to 35 EMI(s) fully paid 3% of the Principal Loan amount outstanding on the date of prepayment; plus goods and services tax. • After 36 or more EMI(s) fully paid 2% of the Principal Loan amount outstanding on the date of prepayment; plus goods and services tax.
Foreclosure Letter Charges	Rs. 500/-
Charges for switching of loans from floating to fixed rate and vice versa	NA
Swap Charges- for any change in repayment instruments (per instance)	Rs. 500/- plus goods and services tax.
Swap Charges for substitution of bank for ECS (per instance)	Rs. 500/- plus goods and services tax.
Loan Cancellation charges (Loan cancelled before first EMI)	Rs.1000/- plus goods and services tax.
Cheque / ECS/ NACH dishonour Charges (Per Dishonour) **(Note:** The Cheque/ECS/NACH dishonour charges as referred to above are not compensatory and/or to be construed as any form of consideration towards the act of dishonour and in no ways should the same be construed as fees recovered under this facility. It is abundantly clarified that SMFG India Credit does not tolerate dishonour of instruments and/or deposit of an invalid, fake or unworthy instrument issued towards meeting payment obligations under this facility and any charges collected thereof are not intended to compound such acts of dishonour. Notwithstanding any charges collected hereof SMFG India Credit reserves its right to invoke appropriate civil and criminal laws.)	Rs. 500/-

Other Qualitative Information	
Clause of Loan agreement relating to engagement of recovery agents	Clause 1.8 (Service Providers) of this Loan Agreement
Clause of Loan agreement which details grievance redressal mechanism	Clause 1.9 (Customer Grievance Redressal Mechanism) of this Loan Agreement.
Phone number and email id of the nodal grievance redressal officer	Telephone Number - 022-69581104 Email ID - GRO@smfgindia.com
Whether the loan is, or in future maybe, subject to transfer to other REs or securitisation	Yes

In case of lending under collaborative lending arrangements (e.g., co-lending/ outsourcing), following additional details may be furnished:

Name of the originating RE, along with its funding proportion	**Name of the partner RE along with its proportion of funding**	**Blended rate of interest**
NA	NA	NA

In case of digital loans, following specific disclosures may be furnished:	
Cooling off/look-up period, in terms of RE's board approved policy, during which borrower shall not be charged any penalty on prepayment of loan	NA
Details of LSP acting as recovery agent and authorized to approach the borrower	NA

All the charges indicated above or elsewhere in the Agreement shall be exclusive of all taxes & statutory levies as may be applicable on same including without limitation tax on goods and services with cess.

Borrower(s) understands that APR provided hereinabove may differ where the Contingent Charges mentioned above are charged during the tenure of the Loan.

Computation of APR

Sr. No.	Parameter	Details
1	Sanctioned Loan amount (in Rupees)	
2	Loan Term (in years/ months/ days)	
a)	No. of instalments for payment of principal, in case of nonequated periodic loan	-
b)	Type of EPI / EMI	Monthly
	Amount of each EPI /EMI (in Rupees)	
	Nos. of EPIs/EMIs	
	(Sl No. 5 of the KFS template – Part 1	
c)	No. of instalments for payment of capitalised interest, if any	-
d)	Commencement of repayments, post sanction	
3	Interest rate type (fixed or floating or hybrid)	Fixed
4	Rate of Interest (Per Annum)	
5	Total Interest Amount to be charged during the entire tenor of the loan as per the rate prevailing on sanction date (in Rupees)	
6	Fee/ Charges payable (in Rupees)	
A	Payable to the RE	
B	Payable to third-party routed through RE	
7	Net disbursed amount (1-6) (in Rupees)	
8	Total amount to be paid by the borrower (sum of 1 and 5) (in Rupees)	
9	Annual Percentage rate- Effective annualized interest rate (in percentage)	
10	Schedule of disbursement as per terms and conditions	One-Time
11	Due date of payment of instalment and interest	

Name of the Borrower: _____ _____

Name of Authorised Signatory (for Proprietorship, Partnership & Companies) (Signature)

Name of the Co-Borrower: _____ _____

Name of Authorised Signatory (for Proprietorship, Partnership & Companies) (Signature)

PLEASE DO NOT SIGN THE ABOVE DOCUMENT, IF BLANK.
PLEASE DO NOT PAY CASH TO ANYONE FOR THE PROCESSING OF YOUR LOAN. IN CASE YOU ARE ASKED, PLEASE REFUSE AND CONTACT YOUR NEAREST
SMFG INDIA CREDIT BRANCH.
FOR ALL PAYMENTS MADE TO ANY REPRESENTATIVE OF SMFG INDIA CREDIT TOWARDS ANY FEE / CHARGES, PLEASE ASK FOR VALID RECEIPT.
IF ANY VERBAL COMMUNICATION MADE TO YOU IS IN CONTRADICTION TO THE ABOVE TERMS & CONDITIONS, PLEASE CONTACT US AT 1800 103 6001

(MON-SAT 9:00 A.M. TO 7:00 P.M. (except public holidays & fourth (4th) Saturday of the month)) OR WRITE TO US AT NAMASTE@SMFGINDIA.COM

* I/We am/are aware that the flat rate of interest mentioned above is for illustrative purpose only, and that the interest will be charged on the loan on reducing balance basis compounded with monthly interest.

Flat Rate is calculated as per follows:-

$$\text{Rate of interest \%} = \frac{(\text{EMI} \times \text{Tenor in months}) \; \text{Principal} \times 100}{\text{Principal} \times \text{Tenor in years}}$$

** In case a Payment Holiday Facility is granted to the Borrower(s), the Due Date of each of the EMI shall be automatically extended by proportionate number of additional months in accordance with the number of Payment Holidays granted and/or otherwise at the sole discretion of SMFG India Credit.

*** In case a Payment Holiday Facility is granted to the Borrower(s), the Last EMI due date shall be automatically extended by proportionate number of additional months in accordance with the number of Payment Holidays granted and/or otherwise at the sole discretion of SMFG India Credit.

Terms & Conditions

I/We acknowledge that:

- The above are the most important terms of the aforesaid Loan, and all other terms and conditions of the Loan shall be as specified acknowledgement form, Loan Agreement and the GTC.
- SMFG India Credit is entitled to add or modify any of the aforesaid terms and conditions which shall be intimated in advance and the same shall be binding on me/ us.
- In case of any conflict between English version of the Loan Document and any vernacular version, English shall prevail.
- In the event of any change of address for communication, any change in my/our job, profession, the same shall be intimated by me/us to SMFG India Credit immediately.
- I/We are aware that the Loan agreement, GTC and other incidental documents executed by me/us integrate all the conditions mentioned herein or incidental thereto, and supersede all negotiations or prior writings, except for those provisions specified herein. In the event of any conflict between the terms, conditions and provisions of the Loan agreement/GTC/documents executed incidental thereto with the terms mentioned herein, then in such an event the terms, conditions and provisions of mentioned herein shall prevail.
- I hereby agree and acknowledge discharge/pay the outstanding Loan dues, to the full satisfaction of SMFG India Credit.

Applicable for Borrowers who do not understand English or are blind:

The Borrower(s) declares and confirms that all the terms and conditions of the Loan Agreement including Loan Summary Schedule, GTC, demand promissory note, letters of guarantee, security documents, declarations and undertakings, and all other loan documents as applicable and the declarations and confirmations have been read and explained to the Borrower(s) in the language understood by the Borrower.

Borrower's Name: ……..……. **Signature……..…**
(Name of Authorised Signatory (for Proprietorship, Partnership & Companies)

Co-Borrower's Name: ……..… **Signature……..…**
(Name of Authorised Signatory (for Proprietorship, Partnership & Companies)

For SMFG India Credit Co. Ltd. **Signature……..…**

Name of the Authorised Signatory:

Instruction for Disbursement of the Loan Amount

Date:

To,
SMFG India Credit Co. Ltd.

Sub: Authorization for disbursement

Sir,

Refer to the Application for grant of Loan facility for _____. Kindly prepare the Loan disbursement Cheque/NEFT in the name and manner hereinafter appearing:

Customer Name – Account No – Bank Name – IFSC Code	Mode for Payment [NEFT/CHEQUE/ SMFG INDIA CREDIT CLOSURE]	Amount

The net disbursal amount mentioned above is indicative. The final disbursed amount may change basis the previous dueson the day of booking which would be informed post disbursement.

The disbursement of the Loan amount in favour of the above payee shall not affect my/ our obligation in relation to the Loan facility. The disbursement of the Loan in favour of the above Payee shall be deemed to be disbursement of the Loan granted to and availed by me/us. I / We hereby declare that:

- The particulars given above are true, correct and complete to the best of my/our knowledge. I / we shall be responsible for the accuracy of the particulars given in the payment instruction.
- I / We shall be bound by any payment instruction executed by SMFG India Credit, if SMFG India Credit had executed the payment instruction in good faith and in compliance of instructions for electronic fund transfer.
- The disbursement of the Loan in favour of the above said Beneficiary shall be deemed to be the Loan granted to and availed by me/us. The disbursement of the Loan amount in favour of the above Beneficiary payee shall not affect my/ our obligation in relation to the Loan facility.
- SMFG India Credit shall not be liable for any loss or damage arising out of or resulting from incomplete information, delay in transmission, delivery or nondelivery of electronic message or any mistake, omission or error in transmission or delivery thereof or any act or event beyond its control. Notwithstanding above, in the event of any delay in the completion of the funds transfer or any loss on account of error in the execution of the funds transfer pursuant to a payment instruction due to any negligence on the part of SMFG India Credit, SMFG India Credit's liability shall be limited to the extent of payment of interest at the bank rate for the period of delay in the case of delayed payment.
- SMFG India Credit shall not be liable for non-credit or crediting remittance amount to wrong beneficiary on account of incorrect information furnished by me/ us in this application form.
- Beneficiary bank may levy charges on inward remittance and deduct the same from the remitted amount.

I understand that all National Electronic Fund Transfer (NEFT) instructions are irrevocable and there is no facility for giving stop payment instruction in respect of remittances through NEFT.

Thanking you.

Yours faithfully,

Name of the Borrower:
Name of Authorised Signatory (for Proprietorship, Partnership & Companies)

_____ _____

(Signature)

Name of the Co-Borrower:
Name of Authorised Signatory (for Proprietorship, Partnership & Companies)

_____ _____

(Signature)